TITLE COMMITMENT

Gatewood Apartments | Aurora, CO

Commitment No.	TC-31313131
Property	Gatewood Apartments, 2231 Quarry Drive, Aurora, CO 61964
Proposed Insured	Whitfield Park Capital
Effective Date	June 14, 2020

1. Schedule A - Commitment. Effective Date: June 14, 2020. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Whitfield Park Capital. Amount of Insurance: $24,460,000. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

2. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Gable Point Capital. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

3. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Gable Point Capital to Whitfield Park Capital. Provide evidence of authority of signatories. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

4. Schedule B-II - Exception. Taxes and assessments for the year 2026 and subsequent years, a lien not yet due and payable. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

5. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 47, Page 47, Official Records of the county. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO.

6. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 131313, as amended. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO.

7. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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8. Schedule B-II - Exception. Matters shown on survey prepared by Axis Land Surveying, including encroachments, if any, along the boundary lines. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

9. Schedule A - Commitment. Effective Date: June 14, 2020. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Whitfield Park Capital. Amount of Insurance: $24,460,000. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO.

10. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Gable Point Capital. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO.

11. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Gable Point Capital to Whitfield Park Capital. Provide evidence of authority of signatories. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

12. Schedule B-II - Exception. Taxes and assessments for the year 2025 and subsequent years, a lien not yet due and payable. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

13. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 23, Page 23, Official Records of the county. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

14. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 242424, as amended. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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15. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

16. Schedule B-II - Exception. Matters shown on survey prepared by Axis Land Surveying, including encroachments, if any, along the boundary lines. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

17. Schedule A - Commitment. Effective Date: June 14, 2020. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Whitfield Park Capital. Amount of Insurance: $24,460,000. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

18. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Gable Point Capital. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

19. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Gable Point Capital to Whitfield Park Capital. Provide evidence of authority of signatories. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

20. Schedule B-II - Exception. Taxes and assessments for the year 2026 and subsequent years, a lien not yet due and payable. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

21. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 46, Page 46, Official Records of the county. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

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22. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 333333, as amended. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

23. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

24. Schedule B-II - Exception. Matters shown on survey prepared by Axis Land Surveying, including encroachments, if any, along the boundary lines. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

25. Schedule A - Commitment. Effective Date: June 14, 2020. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Whitfield Park Capital. Amount of Insurance: $24,460,000. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

26. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Gable Point Capital. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

27. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Gable Point Capital to Whitfield Park Capital. Provide evidence of authority of signatories. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

28. Schedule B-II - Exception. Taxes and assessments for the year 2024 and subsequent years, a lien not yet due and payable. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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29. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 34, Page 34, Official Records of the county. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

30. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 141414, as amended. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

31. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

32. Schedule B-II - Exception. Matters shown on survey prepared by Axis Land Surveying, including encroachments, if any, along the boundary lines. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

33. Schedule A - Commitment. Effective Date: June 14, 2020. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Whitfield Park Capital. Amount of Insurance: $24,460,000. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

34. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Gable Point Capital. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

35. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Gable Point Capital to Whitfield Park Capital. Provide evidence of authority of signatories. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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36. Schedule B-II - Exception. Taxes and assessments for the year 2019 and subsequent years, a lien not yet due and payable. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

37. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 45, Page 45, Official Records of the county. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

38. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 373737, as amended. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

39. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

40. Schedule B-II - Exception. Matters shown on survey prepared by Axis Land Surveying, including encroachments, if any, along the boundary lines. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

41. Schedule A - Commitment. Effective Date: June 14, 2020. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Whitfield Park Capital. Amount of Insurance: $24,460,000. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

42. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Gable Point Capital. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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43. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Gable Point Capital to Whitfield Park Capital. Provide evidence of authority of signatories. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

44. Schedule B-II - Exception. Taxes and assessments for the year 2026 and subsequent years, a lien not yet due and payable. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

45. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 5, Page 5, Official Records of the county. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

46. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 222, as amended. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

47. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

48. Schedule B-II - Exception. Matters shown on survey prepared by Axis Land Surveying, including encroachments, if any, along the boundary lines. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

49. Schedule A - Commitment. Effective Date: June 14, 2020. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Whitfield Park Capital. Amount of Insurance: $24,460,000. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

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50. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Gable Point Capital. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO.

51. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Gable Point Capital to Whitfield Park Capital. Provide evidence of authority of signatories. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

52. Schedule B-II - Exception. Taxes and assessments for the year 2022 and subsequent years, a lien not yet due and payable. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO.

53. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 36, Page 36, Official Records of the county. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

54. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 464646, as amended. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

55. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

56. Schedule B-II - Exception. Matters shown on survey prepared by Axis Land Surveying, including encroachments, if any, along the boundary lines. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

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57. Schedule A - Commitment. Effective Date: June 14, 2020. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Whitfield Park Capital. Amount of Insurance: $24,460,000. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

58. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Gable Point Capital. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

59. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Gable Point Capital to Whitfield Park Capital. Provide evidence of authority of signatories. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

60. Schedule B-II - Exception. Taxes and assessments for the year 2024 and subsequent years, a lien not yet due and payable. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

61. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 36, Page 36, Official Records of the county. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

62. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 171717, as amended. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

63. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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64. Schedule B-II - Exception. Matters shown on survey prepared by Axis Land Surveying, including encroachments, if any, along the boundary lines. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

65. Schedule A - Commitment. Effective Date: June 14, 2020. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Whitfield Park Capital. Amount of Insurance: $24,460,000. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

66. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Gable Point Capital. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

67. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Gable Point Capital to Whitfield Park Capital. Provide evidence of authority of signatories. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

68. Schedule B-II - Exception. Taxes and assessments for the year 2026 and subsequent years, a lien not yet due and payable. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

69. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 30, Page 30, Official Records of the county. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

70. Schedule B-II - Exception. Declaration of covenants, conditions and restrictions recorded as Instrument No. 303030, as amended. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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71. Schedule B-II - Exception. Rights of tenants, as tenants only, under unrecorded leases listed on the rent roll. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

72. Schedule B-II - Exception. Matters shown on survey prepared by Axis Land Surveying, including encroachments, if any, along the boundary lines. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

73. Schedule A - Commitment. Effective Date: June 14, 2020. Policy to be issued: ALTA Owner's Policy (2021). Proposed Insured: Whitfield Park Capital. Amount of Insurance: $24,460,000. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

74. Schedule A - Estate or Interest. Fee simple estate in the land described below is vested in Gable Point Capital. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

75. Schedule B-I - Requirements. Pay the full consideration to or for the account of the grantors. Record the deed from Gable Point Capital to Whitfield Park Capital. Provide evidence of authority of signatories. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

76. Schedule B-II - Exception. Taxes and assessments for the year 2025 and subsequent years, a lien not yet due and payable. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

77. Schedule B-II - Exception. Easement in favor of the local electric utility recorded in Book 9, Page 9, Official Records of the county. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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Disclaimer and Confidentiality

Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. This document relates solely to Gatewood Apartments and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument. This document relates solely to Gatewood Apartments and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. This document relates solely to Gatewood Apartments and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

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